

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X
CARL COMBS,

Plaintiff,

-against-

New York Police Department Sergeant OKELIE
BENTLEY (Shield # 1938),Defendant.
-----X**FIRST AMENDED
COMPLAINT**

JURY TRIAL DEMANDED

Index No. 509353/2018

Plaintiff CARL COMBS, by and through his attorneys, Bernstein Clarke & Moskowitz PLLC, alleges as follows:

JURISDICTION

1. This action is brought pursuant to 42 U.S.C. § 1983 for violations of plaintiff's rights secured by the Fourth and Fourteenth Amendments to the United States Constitution.
2. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.
3. Venue is proper in Kings County pursuant to C.P.L.R. § 504(3) as Kings County is where the events giving rise to this action took place.

JURY DEMAND

4. Plaintiff demands a trial by jury in this action on each and every one of his claims for which jury trial is legally available.

THE PARTIES

5. Plaintiff CARL COMBS is a citizen of the United States and of the State of New York and at all relevant times has resided in Kings County, in the City of New York.

6. Upon information and belief, at all relevant times, defendant New York Police Department (“NYPD”) Sergeant OKELIE BENTLEY (Shield # 1938) was a citizen of the United States and the State of New York.

7. At all relevant times, the defendant was employed by the City of New York (“the City”) and acted under color of law in the course and scope of his duties and authority as an officer, agent, servant, and employee of the NYPD and the City.

8. At all relevant times, the defendant violated plaintiff’s clearly established rights under the Fourth and Fourteenth Amendments to the United States Constitution, of which a reasonable law enforcement officer in the defendant’s circumstance would have known were violations of plaintiff’s rights.

STATEMENT OF FACTS

9. On or about May 5, 2015, Plaintiff was at the corner of Lexington Avenue and Marcy Avenue in Brooklyn, New York.

10. Plaintiff saw an NYPD officer speaking with the Plaintiff’s son.

11. That officer was the defendant, New York Police Department Sergeant OKELIE BENTLEY (Shield # 1938).

12. Plaintiff asked Defendant, in sum and substance, what was happening with his son.

13. Defendant began aggressively pushing Plaintiff and pushed him into a wall.

14. Defendant had no lawful justification or authority use force on Plaintiff.

15. As a result of the defendant's unlawful and unjustified use of force, Plaintiff sustained a serious injury to his right knee.

16. The physical injury inflicted on Plaintiff caused him to experience significant pain and suffering and required surgery and substantial medical care.

**CAUSE OF ACTION
42 U.S.C. § 1983**

17. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

18. In committing the acts and omissions complained of herein, the defendant acted under color of state law to deprive plaintiff of his constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable search and seizure.

19. As a direct and proximate result of the defendant's deprivation of plaintiff's constitutional rights, plaintiff suffered the injuries and damages described above.

20. The unlawful conduct of the defendant was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

DEMAND FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against Defendant:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages to the extent allowable by law;
- (c) attorneys' fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
July 31, 2018

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By: _____

Joshua S. Moskowitz